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No. 94-7427

Supreme Court, U.S.

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IN THE SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1994

JOSEPH V. LIBRETTI, PETITIONER

v.

UNITED STATES OF AMERICA

ON PETITION FOR A WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

BRIEF FOR THE UNITED STATES IN OPPOSITION

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QUESTIONS PRESENTED

1. Whether petitioner's guilty plea, entered pursuant to a plea agreement calling for forfeiture of certain assets, satisfied the requirements of Fed. R. Crim. P. 11(f).
2. Whether petitioner waived his right to a jury trial.

(I)

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OPINION BELOW

The opinion of the court of appeals (Pet. App. 523-531) is reported at 38 F.3d 523.

JURISDICTION

The judgment of the court of appeals was entered on October 19, 1994. The petition for a writ of certiorari was filed on December 27, 1994. The jurisdiction of this Court is invoked under 28 U.S.C. 1254(1).

STATEMENT

After entering a guilty plea in the United States District Court for the District of Wyoming, petitioner was convicted of engaging in a continuing criminal enterprise, in violation of 21

U.S.C. 848. He was sentenced to 20 years' imprisonment, to be followed by five years of supervised release, and fined \$5,000. He was also ordered to forfeit certain specified property. The court of appeals affirmed. Pet. App. 523-531.

1. Petitioner was charged, in an eleven-count superseding indictment, with drug and money laundering offenses stemming from his ongoing conspiracy to distribute cocaine and marijuana. Superseding Indictment 1-39. Count 6 of the indictment charged that petitioner had participated in a continuing criminal enterprise (CCE), in violation of 21 U.S.C. 848. Petitioner's participation in the CCE charged in Count 6 was described in 26 paragraphs of specific allegations. Superseding Indictment 22-31. Count 6 also specified certain real property, conveyances, cash proceeds, currency and jewelry, and other assets that were to be forfeited because they were either "derived from proceeds [petitioner] obtained" from his CCE, or were "used and intended for use * * * to commit or to facilitate the commission" of the CCE offense. *Id.* at 31-32; see 21 U.S.C. 853(a)(1)-(2).¹

2. At the end of the first week of his jury trial on the charges in the indictment, petitioner entered into a plea agreement with the government. The agreement provided that petitioner would "waive[] various constitutional rights, including the right to a

¹ The indictment identified the real property to be forfeited by lot number; the vehicles to be forfeited by color, year, make, model, and vehicle identification number; the computer and printer to be forfeited by make, model, and serial numbers; and the cash to be forfeited by amount and by its location when discovered (e.g., "inside a paint can" at petitioner's house). Superseding Indictment 32-33.

jury trial," and plead guilty to the CCE charge in Count 6. Plea Agreement 2. Petitioner was advised that "[t]he maximum statutory penalty for the offense" included "forfeiture of all known assets as prescribed in 21 U.S.C. § 853 and assets which are discovered at any later time up to \$1,500,000." *Ibid.* The agreement specifically provided that petitioner would "transfer his right, title, and interest in all of his assets to the Division of Criminal Investigation of the Wyoming Attorney General including, but not limited to: all real estate; all personal property, including guns, the computer, and every other item now in the possession of the United States; all bank accounts, investments, retirement accounts, cash, cashier's checks, travelers checks and funds of any kind." *Id.* at 3. In exchange, the government agreed to dismiss the remaining charges in the indictment, not to file any additional charges against petitioner arising from his known activity, and to recommend the mandatory minimum sentence of 20 years' imprisonment. *Id.* at 3; 10/5/92 Change of Plea Tr. 4.

At the change of plea hearing, the district court advised petitioner of his rights, including his "right to a speedy and public jury trial, which we're in the middle of." 10/5/92 Change of Plea Tr. 5. The court explained to petitioner that if he pleaded guilty, "it's going to be the end of this trial," and "the jury is not going to decide whether you're guilty or not." *Id.* at 6. The court also explained "the consequences of [petitioner's] plea," including "a minimum sentence of 20 years," a maximum sentence of life imprisonment, and the fact that "all the property

that's described in this Count 6 could be forfeited to the United States." Id. at 7.

The court asked petitioner whether he understood the consequences of his plea, and petitioner stated: "There is only one part I didn't understand. They said that they can take up to one and a half million dollars from me at any time. Let's say 20 years from now I get a job, I get a paycheck. They can come and take that?" 10/5/92 Change of Plea Tr. 7-8. After consulting with petitioner's attorney, the court explained that the forfeiture was limited to tainted assets, and that petitioner's future legitimate income would not be forfeit. Id. at 8-9.

The court then explained to petitioner that "I will have to question you as to whether or not your guilty plea is a voluntary plea and whether or not there's a factual basis for the plea." 10/5/92 Change of Plea Tr. 9. The court read aloud the 26 paragraphs of Count 6 of the indictment. Id. at 10-18. The court also read aloud the allegations in Count 6 specifying the property to be forfeited by petitioner (id. at 18-19):

And then under the topic Forfeiture, it alleges that upon conviction of the defendant for engaging in a continuing criminal enterprise, the United States is entitled to forfeiture of all property of any kind constituting or derived from proceeds [petitioner] obtained directly and indirectly by engaging in said continuing criminal enterprise; all property of any kind which was used or intended for use in any manner or part to commit or to facilitate the commission of this criminal -- continuing criminal enterprise, including but not limited to the following, and then there is listed real property, your lot in Star Valley, conveyances of two vehicles, cash proceeds over a hundred thousand dollars and then another \$12,000 and a five -- 5,100 and 7,600 amount in currency and jewelry and property consisting of a mobile home and a computer system, bank

accounts that are listed in the Indictment, investments that are listed in the Indictment, the additional cashier's checks and the contents of safe deposit boxes, and that's it.

After confirming under oath that he understood the indictment and the plea agreement, and specifically that he understood "that all of [his] property could be forfeited," petitioner pleaded guilty to Count 6. 10/5/92 Change of Plea Tr. 19-21. He explained that he was pleading guilty, as the district court summarized (id. at 22), because "the testimony that you heard in this courtroom last week was so overwhelming that you feel you have no defense to it." Petitioner also confirmed that he was pleading guilty in part to "spare" his parents and brother from testifying that "this property that's listed here isn't -- wasn't acquired from them by way of gift." Id. at 23. At the end of the hearing, the district court accepted the plea, explaining (id. at 43): "The Court finds that the plea of guilty is a voluntary plea and the Court further finds that there is a factual basis for the guilty plea."

Two and one-half months later, at petitioner's sentencing hearing, the court stated that it would enter an order of forfeiture consistent with the plea agreement. 12/23/92 Sent. Tr. 20-21. At the end of the hearing, petitioner asked, "Are we over?" The court answered, "I think so," and petitioner stated: "Well, then, with that in mind, I would just like to object to what I see as a failure to find any factual basis for the whole forfeiture, just for the record." Id. at 25. The court "noted the objection, but determined that there was sufficient evidence to warrant granting forfeiture." Pet. App. 526.

3. On December 23, 1992, the court ordered forfeiture of 40 pieces of property, including land, vehicles, cash, machineguns, bank accounts, cashier's checks, and travelers checks. Order of Forfeiture 2-8. Petitioner filed a notice of appeal from that order on December 29, 1992. Gov't C.A. Br. 10.²

On April 2, 1993, while the case was pending before the court of appeals, the district court modified its earlier forfeiture order, determining "that it may be unjust to enforce the specific forfeiture provisions in the plea agreement." Order Amending December 23, 1992, Forfeiture Order 13. The court explained that "a defendant's concession in a plea agreement to the forfeiture of his property does not make it so," and ordered "the Magistrate [to] conduct a fact finding hearing in which [petitioner] is given an opportunity to show by a preponderance of the evidence that his property is not subject to forfeiture." *Id.* at 13-14 (internal quotation and citation omitted).³ On June 7, 1993, the district court granted the government's motion to stay proceedings before the magistrate judge pending the disposition of petitioner's appeal. Gov't C.A. Br. 12.

4. a. The court of appeals affirmed. Petitioner argued that the district court had violated Fed. R. Crim. P. 11(f) by failing to satisfy itself that there was a factual basis for the

² On December 30, 1992, petitioner filed an additional notice of appeal from the \$5,000 fine. Gov't C.A. Br. 10.

³ The court also recognized various third parties' interests in some of the forfeited property. Order Amending December 23, 1992, Forfeiture Order 14-16; see 21 U.S.C. 853(n)(6)(A)-(B).

forfeiture. The court rejected that argument based on petitioner's concession that "criminal forfeiture * * * is a part of the sentence, not a part of the substantive offense." Pet. App. 528; see *id.* at 527 (petitioner "concedes" that "forfeiture is part of the criminal sentence"). The court held "that a sentencing judge is not required under Rule 11 to determine whether there is a factual basis for a defendant's concession to a criminal forfeiture pursuant to his plea bargain with the government," because "Rule 11(f) only applies to the guilty plea," not to the sentence imposed pursuant to that plea. *Id.* at 528 (quoting United States v. Boatner, 966 F.2d 1575, 1581 (11th Cir. 1992)).

b. The court also rejected petitioner's argument that he had been deprived of his right to a jury trial on the forfeiture. The court stated that it "need not decide" whether petitioner possessed a constitutional right to a jury trial on forfeiture⁴ "because constitutional rights can be waived, and because a defendant does have a statutory right, pursuant to Fed.R.Crim.P. 31(e), to have a jury determine which of his assets may be forfeited. Thus, we must determine whether [petitioner] waived his right to a jury trial." Pet. App. 530. The court examined the record (see *id.* at 530-531) and concluded that petitioner had waived his right to a jury trial on the issue of forfeiture. *Id.* at 531.

⁴ The court did note, however, that the absence of a Sixth Amendment right to have one's punishment determined by a jury "suggests that [petitioner] does not have a constitutional right to a jury trial at the forfeiture stage of these proceedings." Pet. App. 530.

ARGUMENT

Petitioner contends (Pet. 7) that this Court should grant review to resolve conflicts among the courts of appeals on two questions: first, whether Fed. R. Crim. P. 11(f) requires a district court to determine that a "factual basis" exists for a criminal forfeiture that is stipulated in a plea agreement; and second, whether a defendant has a constitutional right to a jury trial on a criminal forfeiture.

1. a. The court of appeals correctly determined that Rule 11(f) does not require a district court to find a factual basis for a criminal forfeiture. Rule 11(f) provides that the court should not enter judgment on a guilty plea "without making such inquiry as shall satisfy it that there is a factual basis for the plea." By focusing on the factual basis for the plea itself, rather than on the consequences of the plea, Rule 11(f) is designed to ensure only "that the conduct which the defendant admits constitutes the offense charged," in order to "protect a defendant who is in the position of pleading voluntarily * * * without realizing that his conduct does not actually fall within the charge." Advisory Committee's Notes to Fed. R. Crim. P. 11 (1966); see United States v. LeDonne, 21 F.3d 1418, 1424 (7th Cir.), cert. denied, 115 S. Ct. 584 (1994); United States v. DeFusco, 949 F.2d 114, 120 (4th Cir. 1991), cert. denied, 112 S. Ct. 1703 (1992). Thus, as the courts of appeals have recognized, the Rule does not require a factual basis for the defendant's sentence, but only for his conviction. See United States v. Reyes, 13 F.3d 638, 640 (2d Cir. 1994) (no

need for factual basis on type and quantity of controlled substance defendant conspired to import because those facts not elements of the crime, but only sentencing factors); see also United States v. Allen, 804 F.2d 244, 245 (3d Cir. 1986), cert. denied, 480 U.S. 922 (1987); United States v. Adams, 961 F.2d 505, 508 (5th Cir. 1992) (per curiam); United States v. Morrow, 914 F.2d 608, 612-613 (4th Cir. 1990); United States v. Goldberg, 862 F.2d 101, 104 (6th Cir. 1988); United States v. Rivera-Ramirez, 715 F.2d 453, 457 (9th Cir. 1983), cert. denied, 467 U.S. 1215 (1984).

As petitioner conceded below (see Pet. App. 527, 528), criminal forfeiture is a penalty, not an offense. See Alexander v. United States, 113 S. Ct. 2766, 2775 (1993) ("The in personam criminal forfeiture [under RICO] is clearly a form of monetary punishment⁵"); United States v. Robinson, 8 F.3d 418, 420 (7th Cir. 1993); United States v. Simone, 931 F.2d 1186, 1199 (7th Cir.), cert. denied, 502 U.S. 981 (1991). As the court explained in United States v. Bissell, 866 F.2d 1343, 1348 n.3 (11th Cir. 1989), "criminal forfeiture operates in personam against the defendant, serving as a penalty upon conviction" for an underlying crime, and is therefore different from civil forfeiture, which "operates in rem against the property itself under the theory that the property

⁵ The forfeiture provisions applicable to violations of the CCE statute, 21 U.S.C. 853, and those applicable to violations of the Racketeer Influenced and Corrupt Organizations Act (RICO), 18 U.S.C. 1963(a), have been construed identically. See, e.g., Pet. App. 528 n.6; United States v. Bissell, 866 F.2d 1343, 1348 n.3 (11th Cir. 1989); In re Forfeiture Hearing as to Caplin & Drysdale, 837 F.2d 637, 640 (4th Cir. 1988) (en banc), aff'd, 491 U.S. 617 (1989).

is guilty of wrong-doing." See In re Billman, 915 F.2d 916, 920 (4th Cir. 1990), cert. denied, 500 U.S. 952 (1991).⁶

Thus, the forfeiture provisions in petitioner's plea agreement were not subject to the requirements of Rule 11(f). As a penalty, the forfeiture in this case formed no part of petitioner's "plea," and therefore need not have been supported by a factual basis pursuant to the Rule. As the Eleventh Circuit explained in United States v. Boatner, 966 F.2d 1575, 1581 (11th Cir. 1992) (citations omitted),

forfeiture is a consequence of a defendant's drug activity rather than a determination of his culpability. Consequently, a forfeiture provision in a Rule 11 agreement is not a plea to a substantive charge, but a sanction to which the parties agree as a result of the defendant's plea. Because Rule 11(f) is applicable only to guilty pleas, * * * a sentencing judge is not required under Rule 11 to determine whether there is a factual basis for a defendant's concession to a criminal forfeiture pursuant to his plea bargain with the government.

b. Petitioner is correct that the courts of appeals are divided on this question. See Pet. App. 527-528 ("Four circuits have considered this issue and have reached divergent conclusions"). The Fourth and Seventh Circuits have held that Rule 11(f) requires the district court to determine a factual basis for

⁶ The statutes underlying petitioner's conviction and sentence in this case specifically provide that criminal forfeiture is part of a defendant's sentence, not part of his crime. Under 21 U.S.C. 848, a person who engages in a CCE "shall be sentenced to a term of imprisonment * * * to a fine * * * and to the forfeiture prescribed in section 853 of this title." Section 853, in turn, provides that "[t]he court, in imposing sentence on [a person convicted of a CCE] shall order, in addition to any other sentence * * * that the person forfeit to the United States all property described in this subsection."

a forfeiture. See United States v. Reckmeyer, 786 F.2d 1216, 1222 (4th Cir.) (Rule 11(f) "requires the district court to inquire beyond the [plea] agreement to determine if there is a factual basis for the forfeiture of the assets"), cert. denied, 479 U.S. 850 (1986); United States v. Roberts, 749 F.2d 404, 409-410 (7th Cir. 1984), cert. denied, 470 U.S. 1058 (1985); United States v. De Ortiz, 910 F.2d 376, 384 (7th Cir. 1990) (Rule 11(f) "requires that the district court inquire into the factual basis for the plea, including the agreement to forfeit assets"). The Fifth Circuit has held that "the requirement of Rule 11(f) that the factual basis for a plea be established at the plea hearing does not apply to an order of forfeiture," but that "we will uphold the district court's order of forfeiture if the entire record which was before the court provided a factual basis for the forfeiture." United States v. Bachynsky, 949 F.2d 722, 730 (5th Cir. 1991) (internal quotation marks omitted), cert. denied, 113 S. Ct. 150 (1992).⁷ Like the Tenth Circuit in the instant case, the Eleventh Circuit has "conclude[d] that neither Reckmeyer nor Roberts is persuasive" and has held that "a sentencing judge is not required under Rule 11 to

⁷ In Bachynsky, the Fifth Circuit suggested that Rule 11(f) ordinarily requires findings to be made "at the plea hearing." See United States v. Crumbley, 872 F.2d 975, 976-977 (11th Cir. 1989), cited in Bachynsky, 949 F.2d at 730. That is incorrect. The Rule contemplates "acceptance of a plea of guilty" without a factual basis, and provides only that the "the court should not enter judgment upon such plea" without being satisfied that it is supported by a factual basis. The Advisory Committee's Notes to the Rule confirm that the court may look beyond the plea hearing itself in finding the factual basis for the plea. See, e.g., United States v. Adams, 961 F.2d 505, 508-509 & n.3 (5th Cir. 1992).

determine whether there is a factual basis for a defendant's concession to a criminal forfeiture pursuant to his plea bargain with the government." United States v. Boatner, 966 F.2d 1575, 1581 (11th Cir. 1992); see Pet. App. 528 ("We agree with the holding and reasoning in Boatner").

The instant case, however, provides an inappropriate vehicle for resolution of the circuit conflict.* Even under the more stringent standard applicable in the Fourth and Seventh Circuits, Rule 11(f) was satisfied with respect to petitioner's forfeiture in this case. The factual basis required by Rule 11(f) may be found in "anything that appears on the record," United States v. Lumpkins, 845 F.2d 1444, 1450 (7th Cir. 1988) (internal quotation marks omitted), including "the information and the plea hearing," or the "Presentence Report," United States v. Adams, 961 F.2d 505,

* As the court below noted (Pet. App. 528-529), moreover, the conflict on the issue may well be receding. The Seventh Circuit has recognized that "[f]orfeiture is not an element of the offense but only punishment for an offense upon which a conviction has already been entered," United States v. Simone, 931 F.2d 1186, 1199 (7th Cir.) (internal quotation marks omitted), cert. denied, 502 U.S. 981 (1991), and as the court below suggested (Pet. App. 528), the Seventh Circuit may not "continue to apply the holding in Roberts in light of" that recognition. But see De Ortiz, 910 F.2d at 383-384. The Fourth Circuit has also recently recognized that forfeiture is punishment. Compare In re Billman, 915 F.2d 916, 920 (4th Cir. 1990) (RICO forfeiture is "an in personam proceeding against the defendant, and the forfeiture constitutes partial punishment for the offense"), cert. denied, 500 U.S. 952 (1991), with In re Forfeiture Hearing as to Caplin & Drysdale, Chartered, 837 F.2d 637, 644-645 (4th Cir. 1988) (en banc) (Forfeiture under 21 U.S.C. 853 "is not an attempt to punish," but "is an assertion that the defendant does not have the * * * assets"), aff'd, 491 U.S. 617 (1989). The Fifth Circuit's decision in Bachynsky relied on the Eleventh Circuit's earlier decision in United States v. Crumbley, 872 F.2d 975 (1989), which was later effectively overruled in Boatner, 966 F.2d at 1581; see Pet. App. 528 n.7.

508-509 & n.3 (5th Cir. 1992). See Advisory Committee's Notes to Fed. R. Crim. P. 11 (1974) ("An inquiry might be made of the defendant, of the attorneys for the government and the defense, of the presentence report when one is available, or by whatever means is appropriate in a specific case."); Santobello v. New York, 404 U.S. 257, 261 (1971); Bachynsky, 949 F.2d at 730; United States v. Allen, 804 F.2d 244, 245 (3d Cir. 1986), cert. denied, 480 U.S. 922 (1987); United States v. Rivera-Ramirez, 715 F.2d 453, 457 (9th Cir. 1983), cert. denied, 467 U.S. 1215 (1984). Thus, in Reckmeyer, the Fourth Circuit upheld the forfeiture based on "the plea agreement," the government's "statement of facts" at the change of plea hearing, and "the forfeiture [as] pled in the indictment." 786 F.2d at 1222. In Roberts, the Seventh Circuit upheld the forfeiture "[o]n the basis of concessions made in the plea agreement." 749 F.2d at 410. Other Seventh Circuit decisions endorse reliance on the entire record. Lumpkins, 845 F.2d at 1450.

The record in this case provided an ample factual basis for petitioner's forfeiture. Petitioner's plea agreement expressly provided for forfeiture and specified the assets to be forfeited. Plea Agreement 2-3. Count 6 of the indictment also specified the property to be forfeited and explained why the property was forfeitable under the standards of 21 U.S.C. 853. Superseding Indictment 31-32. At the change of plea hearing, the court specifically advised petitioner that "all the property that's described in Count 6 could be forfeited to the United States," and read aloud the allegations in Count 6 specifying the property to be

forfeited. 10/5/92 Change of Plea Tr. 7, 18-19. Petitioner himself explained that he was pleading guilty due to the government's "overwhelming" evidence against him, *id.* at 22, and to "spare" his parents and brother from testifying that "this property that's listed here isn't -- wasn't acquired from them by way of gift," *id.* at 23. Two months later, when petitioner lodged a pro forma objection to the adequacy of the factual basis underlying the forfeiture, 12/23/92 Sent. Tr. 25, the court "noted the objection, but determined that there was sufficient evidence to warrant granting forfeiture." Pet. App. 526. The Presentence Report (PSR) detailed the connections between petitioner's CCE and the forfeited property. See PSR ¶¶ 6, 8-9, 11-12, 18, 25, 27-28, 38.⁹ Based on

⁹ The court did later determine "that it may be unjust to enforce the specific forfeiture provisions in the plea agreement." Order Amending December 23, 1992, Forfeiture Order 12. That determination, however, was made (and was based on motions that were filed) long after judgment was entered, and after petitioner filed his notice of appeal. See Pet. App. 526. Although the court has the authority to adjudicate third-party interests in forfeited property after entering the judgment of forfeiture, that authority does not extend to the defendant's own interest. See 21 U.S.C. 853(n)(2) (covering petitions filed by "[a]ny person, other than the defendant"); Pet. App. 527. Neither Rule 35 nor Rule 36 of the Federal Rules of Criminal Procedure authorized the court's actions. See, e.g., *Scott v. United States*, 997 F.2d 340, 341 (7th Cir. 1993) (Rule 35); *United States v. Dadingo*, 5 F.3d 262, 264 (7th Cir. 1993) (Rule 36). In any event, once petitioner filed his notice of appeal from the forfeiture order -- before the filing of and decision on his motions to reconsider the forfeiture order -- the district court was without jurisdiction over that aspect of the case. See *Griggs v. Provident Consumer Discount Co.*, 459 U.S. 56, 59-61 (1982); Pet. App. 526-527.

that record, petitioner would not be entitled to relief under any standard. Further review is not warranted.¹⁰

2. Petitioner also alleges (Pet. 7) that the courts of appeals are divided over whether a defendant has a constitutional right to a jury determination of forfeiture. Even if there were a conflict on that question,¹¹ this case does not squarely present it. The court of appeals in this case stated that it "need not decide" the constitutional question "because constitutional rights can be waived, and because a defendant does have a statutory right, pursuant to Fed.R.Crim.P. 31(e), to have a jury determine which of his assets may be forfeited. Thus, we must determine whether [petitioner] waived his right to a jury trial." Pet. App. 530. The court examined the record (see *id.* at 530-531) and concluded that petitioner had waived his right to a jury trial on the issue

¹⁰ Indeed, even if petitioner were correct that Rule 11(f) was violated in this case, he would not be entitled to relief. Rule 11(h) specifically provides that "[a]ny variance from the procedures required by this rule which does not affect substantial rights shall be disregarded." As discussed in the text, the court found ample facts prior to entering its order of forfeiture. Thus, any error under Rule 11(f) should be "disregarded."

¹¹ In fact, there is no square conflict on this issue. In *United States v. Garrett*, 727 F.2d 1003, 1012 & n.6 (1984), *aff'd* on other grounds, 471 U.S. 773 (1985), the Eleventh Circuit held that a defendant has a constitutional right to a jury determination of a criminal forfeiture. In *United States v. Robinson*, 8 F.3d 418, 420 (1993), the Seventh Circuit stated its "belie[f]" that no such constitutional right exists, but declined to "provide a definitive answer to this question today." The court below took a similar approach. It stated that the absence of any Sixth Amendment right to have one's punishment determined by a jury "suggests that [petitioner] does not have a constitutional right to a jury trial at the forfeiture stage of these proceedings," while ultimately concluding that "we need not decide that issue," Pet. App. 530, because there was in any event a valid waiver of whatever jury trial rights petitioner did possess, *id.* at 531.

of forfeiture. Id. at 531. The court's factbound determination regarding the adequacy of petitioner's waiver does not warrant this Court's review.

CONCLUSION

The petition for a writ of certiorari should be denied.

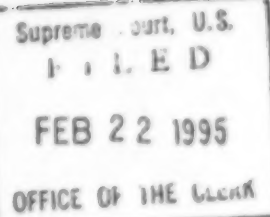
Respectfully submitted.

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FEBRUARY 1995



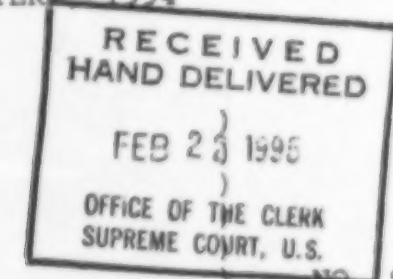
IN THE SUPREME COURT OF THE UNITED STATES

OCTOBER TERM 1994

JOSEPH V. LIBRETTI
PETITIONER

V.

UNITED STATES OF AMERICA



NO. 94-7427

CERTIFICATE OF SERVICE

It is hereby certified that all parties required to be served have been served copies of the **BRIEF FOR THE UNITED STATES IN OPPOSITION**, by first-class mail, postage prepaid, this 22nd day of February, 1995.

JENINE JENSEN
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February 22, 1995